

UPSC INDIAN POLITY

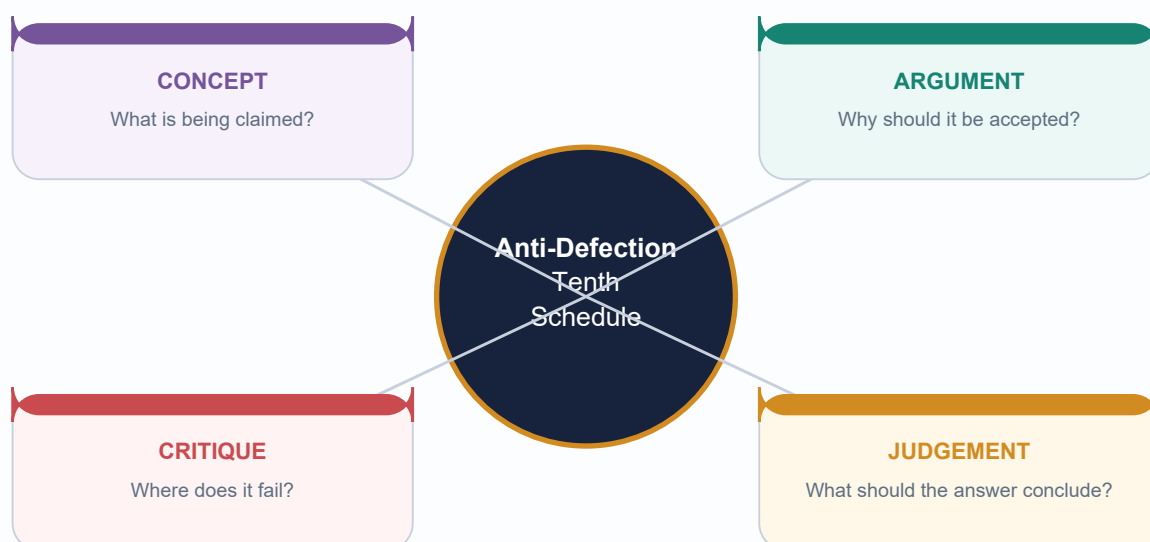
Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Anti-Defection-Law.md + 42_Anti-Defection-Law.md

Learning cards: 15



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/42_Anti-Defection-Law.md.*

MEMORY HOOK

greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/42_Anti-Defection-Law.md.*

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/42_Anti-Defection-Law.md.*

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation • Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Introduced by	52nd Amdt, 1985 → Tenth Schedule
Amended by	91st Amdt, 2003 (removed split exception)
Deciding authority	Presiding Officer (Speaker/Chairman)
Key case	Kihoto Hollohan (1992) — judicial review allowed
Only surviving defence	Merger (at least 2/3 of the legislature party)

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation • Core idea

GS-II Indian
Polity

INTRO & ORIGIN

The **anti-defection law (Tenth Schedule, 52nd Amdt 1985)** disqualifies legislators who **switch parties** or **defy the party whip**. The **91st Amendment (2003)** deleted the "split" defence and capped the **Council of Ministers at 15%**. The **Speaker** decides, but courts can review (**Kihoto Hollohan**).

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1 The anti-defection law (Tenth Schedule, 52nd Amdt 1985) disqualifies legislators who switch parties or defy the party whip. The 91st Amendment (2003)	Dimension 2 greater than ☐ Only MERGER (at least 2/3 of the legislature party) survives — the split
Dimension 3 greater than (1/3) exception was deleted in 2003.	Dimension 4 greater than ☐ Party member disqualified for: voluntarily leaving the party OR voting against the whip (not condoned in 15 days).

STATIC THEORY

- greater than ☐ Only **MERGER (at least 2/3 of the legislature party) survives** — the split
- greater than (1/3) exception was deleted in 2003.
- greater than ☐ Party member disqualified for: **voluntarily leaving** the party OR **voting against the whip** (not condoned in 15 days).
- greater than ☐ **Nominated** member: may join a party **within 6 months**; **Independent**: disqualified if he joins **any** party.

MEMORY HOOK

greater than Only **MERGER (at least 2/3 of the legislature party) survives** — the split | greater than Party member disqualified for: **voluntarily leaving** the party OR **voting against the whip** (not condoned in 15 days). | greater than **Nominated** member: may join a party **within 6 months**; **Independent**: disqualified if he joins **any** party.

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — **ADVANCED / COMPLETE** → Core idea

HIGH

Foundation • Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

- 52nd Amdt amended Arts **101, 102, 190, 191**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1

- 52nd Amdt amended Arts 101, 102, 190, 191.

Dimension 2

- **Kihoto Hollohan**: Speaker acts as a **tribunal**; decision open to judicial review.

Dimension 3

- 91st Amdt: **15% CoM cap** (states min 12); defectors barred from ministership.

STATIC THEORY

- □ **Kihoto Hollohan**: Speaker acts as a **tribunal**; decision open to **judicial review**.
- □ 91st Amdt: **15% CoM cap** (states min 12); defectors barred from ministership.

MUST-KNOW FACTS

1. 52nd Amdt amended Arts **101, 102, 190, 191**.
2. **Kihoto Hollohan**: Speaker acts as a **tribunal**; decision open to **judicial review**.
3. 91st Amdt: **15% CoM cap** (states min 12); defectors barred from ministership.

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — **ADVANCED / COMPLETE** → Must-Know Facts

HIGH

Foundation • □ Current link

GS-II Indian
Polity

NEWS TRIGGER

- **Speaker's delay** in deciding petitions (Maharashtra Shiv Sena split, 2022) is the big criticism. **Keisham Meghachandra (2020)**: SC urged an **independent tribunal** and a ~3-month decision limit. "Resign-and-recontest" loophole used to topple governments (Karnataka/MP).

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → [□](#)
Current link

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1

greater than Subject: Polity · Tier: Advanced (exam depth) ·
GS Paper: GS-II

Dimension 2

greater than Grounded in: Indian Polity by M. Laxmikant,
Tenth Schedule/electoral-dynamics chapters (direct check of
the local Sixth Revised Edition P

Dimension 3

greater than [□](#) = from source book · [□□](#) = inference / case
law · [□](#) = current affairs.

Dimension 4

greater than Companion: basic/Anti-Defection-Law.md.

STATIC THEORY

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• greater than [□](#) = from source book · [□□](#) = inference / case law · [□](#) = current affairs.

• greater than *Companion: basic/Anti-Defection-Law.md.*

MUST-KNOW FACTS

1. greater than = from source book · [□□](#) = inference / case law · [□](#) = current affairs.

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → Core
Foundation

HIGH

Advanced • PART A — ORIGIN [□](#)GS-II Indian
Polity

INTRO & ORIGIN

[□](#) **52nd Amendment Act, 1985** added the **Tenth Schedule** (amending Arts **101, 102, 190, 191**) — the

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — ORIGIN □: RECALL MAP

PART A — ORIGIN □

Dimension 1 ☐ 52nd Amendment Act, 1985 added the Tenth Schedule (amending Arts 101, 102, 190, 191) — the	Dimension 2 anti-defection law.
Dimension 3 ☐ 91st Amendment Act, 2003 deleted the "split" exception (which had protected 1/3-strength splits).	

STATIC THEORY

- anti-defection law.
- ☐ 91st Amendment Act, 2003 deleted the "split" exception (which had protected 1/3-strength splits).

MUST-KNOW FACTS

1. 52nd Amendment Act, 1985 added the **Tenth Schedule** (amending Arts **101, 102, 190, 191**) — the
2. 91st Amendment Act, 2003 deleted the "split" exception (which had protected 1/3-strength splits).

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → PART A — ORIGIN □

HIGH

Advanced · PART B — GROUNDS OF DISQUALIFICATION □□

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Member type	Disqualified if...
☐ Party member	(a) voluntarily gives up party membership, OR (b) votes/abstains against the party whip without prior permission & not condoned within 15 days
☐ Independent	joins any political party after election
☐ Nominated	joins a party after 6 months of taking the seat (may join within 6 months freely)

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → PART B — GROUNDS OF DISQUALIFICATION □□

HIGH

Advanced · PART B — GROUNDS OF DISQUALIFICATION □□

GS-II Indian Polity

INTRO & ORIGIN

□ "Voluntarily giving up" ≠ only formal resignation — the SC has read it to include **conduct** (e.g., attending rival rallies).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → PART B — GROUNDS OF DISQUALIFICATION □□

HIGH

Advanced · Exceptions □ (only ONE survives)

GS-II Indian Polity

INTRO & ORIGIN

□ **Merger** — if at least 2/3 of the legislature party agree to the merger;

Advanced learning layer: concepts → constitutional detail → UPSC application.

EXCEPTIONS □ (ONLY ONE SURVIVES): RECALL MAP

Exceptions □ (only ONE survives)

Dimension 1 □ Merger — if at least 2/3 of the legislature party agree to the merger;	Dimension 2 members who do not accept it may function as a separate group without disqualification.
Dimension 3 □ Presiding officer who gives up party membership on taking office (dignity of the chair).	

STATIC THEORY

- members who do not accept it may function as a separate group without disqualification.
- □ Presiding officer who gives up party membership on taking office (dignity of the chair).

MUST-KNOW FACTS

1. **Merger** — if at least 2/3 of the legislature party agree to the merger;
2. Presiding officer who gives up party membership on taking office (dignity of the chair).

UPSC TRAPS

WRONG: □ The "split" exception (1/3 members) was **REMOVED** by the 91st Amendment (2003) — so only **merger** remains.

CORRECT: Recheck the precise constitutional rule, exception, or institutional limit.

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → Exceptions □ (only ONE survives)

HIGH

Advanced · PART C — DECIDING AUTHORITY & JUDICIAL REVIEW □□

GS-II Indian Polity

INTRO & ORIGIN

- Decided by the **Presiding Officer** (Speaker/Chairman) of the House.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART C — DECIDING AUTHORITY & JUDICIAL REVIEW □□: RECALL MAP

PART C — DECIDING AUTHORITY & JUDICIAL REVIEW □□

Dimension 1 Decided by the Presiding Officer (Speaker/Chairman) of the House.	Dimension 2 Kihoto Hollohan v. Zachillhu (1992): the SC invalidated paragraph 7's
Dimension 3 jurisdiction-exclusion (it lacked required state ratification) and held that the Presiding Officer acts as a tribunal, so the decision is subject to j	Dimension 4 Defection has no automatic effect — needs a complaint; member gets a hearing.

STATIC THEORY

- Decided by the **Kihoto Hollohan v. Zachillhu (1992)**: the SC invalidated paragraph 7's
- jurisdiction-exclusion (it lacked required state ratification) and held that the Presiding Officer acts as a **tribunal**, so the decision **is subject to judicial review** (on grounds of *mala fides*, *perversity*, *violation of natural justice*). Review is generally available **after** the decision, not before.
- Defection has **no automatic effect** — needs a complaint; member gets a hearing.

MUST-KNOW FACTS

- Decided by the **Presiding Officer** (Speaker/Chairman) of the House.
- Decided by the **Kihoto Hollohan v. Zachillhu (1992)**: the SC invalidated paragraph 7's
- Defection has **no automatic effect** — needs a complaint; member gets a hearing.

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → PART C — DECIDING AUTHORITY & JUDICIAL REVIEW □□

HIGH

Advanced · PART D — 91st AMENDMENT ACT, 2003 □

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INTRO & ORIGIN

- Beyond deleting the split exception, it:

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART D — 91ST AMENDMENT ACT, 2003 □: RECALL MAP

PART D — 91st AMENDMENT ACT, 2003 □

Dimension 1 □ Beyond deleting the split exception, it:	Dimension 2 Capped the Council of Ministers at 15% of the House (Lok Sabha / Assembly); states: minimum 12 ministers.
Dimension 3 Barred a disqualified defector from being appointed a Minister (or holding a remunerative political post)	Dimension 4 until re-election or the term ends. □□ Recommended by the Dinesh Goswami Committee (1990), Law Commission 170th Report (1999) and NCRWC (2002).

STATIC THEORY

- Capped the **Council of Ministers at 15%** of the House (Lok Sabha / Assembly); **states: minimum 12** ministers.
- **Barred a disqualified defector** from being appointed a **Minister** (or holding a remunerative political post)
- until re-election or the term ends. □□ Recommended by the **Dinesh Goswami Committee (1990)**, **Law Commission 170th Report (1999)** and **NCRWC (2002)**.

MUST-KNOW FACTS

1. Beyond deleting the split exception, it:

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → PART D — 91st AMENDMENT ACT, 2003 □

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: Anti-defection law is in the Ninth Schedule

CORRECT: Tenth Schedule (52nd Amdt 1985).

WRONG: Both split (1/3) and merger (2/3) are valid defences

CORRECT: only **MERGER (2/3)** survives; **split was deleted (2003)**.

WRONG: The Speaker's decision is final and beyond courts

CORRECT: subject to **judicial review** (*Kihoto Hollohan*).

WRONG: A nominated member can never join a party

CORRECT: may join **within 6 months** of taking the seat.

WRONG: The CoM cap is 10%

CORRECT: **15%** (91st Amdt); states have a **minimum of 12**.

WRONG: Defection disqualification applies to voting on **any** issue

CORRECT: only against the **party whip** (voting/abstaining contrary to direction).

MAINS ANGLE**STUDY LINK**

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — **ADVANCED / COMPLETE** →
UPSC Traps

HIGH**Advanced • CA hooks**GS-II Indian
Polity**NEWS TRIGGER**

□ □ □ **Speaker's delay** in deciding defection petitions — the recurring theme in the **Maharashtra Shiv Sena split (2022)** and similar cases; long pendency defeats the law's purpose. □ **Keisham Meghachandra Singh (2020):** SC urged Parliament to consider an **independent tribunal** (retired judge)

INTRO & ORIGIN

to decide defection cases and suggested a **~3-month** decision timeline for Speakers.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ **CA HOOKS: RECALL MAP**□ **CA hooks****Dimension 1**

to decide defection cases and suggested a ~3-month decision timeline for Speakers.

Dimension 2

□ "Resign-and-recontest" model (Karnataka/MP) exploiting the law's gaps — engineered defections via mass

Dimension 3

resignations to topple governments.

Dimension 4

□ Debate on whether the whip should apply only to no-confidence/money bills (to protect legislators' dissent) —

STATIC THEORY

- □ **"Resign-and-recontest" model** (Karnataka/MP) exploiting the law's gaps — engineered defections via mass
- resignations to topple governments.
- □ Debate on whether the **whip** should apply only to no-confidence/money bills (to protect legislators' dissent) —
- as many committees have recommended.

MAINS ANGLE

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The anti-defection law banned retail defection but legalised wholesale defection." Critically examine. Should the power to decide defections be shifted from the Speaker to an independent tribunal or the ECI? The whip, dissent and the freedom of conscience — has the Tenth Schedule harmed intra-party democracy?

STUDY LINK

Anti-Defection Law (Tenth Schedule; Arts 102 & 191) — ADVANCED / COMPLETE → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI